

TENTATIVE RULING

Case: **Purpura-Pontoniere v. The Regents of the University of California**
Case No. CV2026-1743

Hearing Date: **August 12, 2026** **Department Thirteen** **9:00 a.m.**

As an initial matter, this Court construes Petitioner Roan Purpura-Pontoniere's ("petitioner") motion and application for temporary restraining order, order to show cause re preliminary injunction, and order for expedited discovery as a motion for a preliminary injunction. (See *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193 [the trial court may construe a pleading labeled as one type of motion to be a different type of motion]; see also Reply, p. 5, fn. 7 ["[g]iven the way in which the Petition was calendared, this application/motion is presumably positioned no longer as an application for a TRO but rather as a motion for a preliminary injunction (and supporting discovery)"].)

Petitioner's motion for preliminary injunction is **DENIED**. (Code Civ. Proc., §§ 526, 527.) The Court finds that there is insufficient evidence to establish a likelihood that petitioner will prevail on the merits. (See *Butt v. State of California* (1992) 4 Cal.4th 668, 678; *Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749; *O'Connell v. Sup.Ct.* (2006) 141 Cal.App.4th 1452, 1481; *San Francisco Newspaper Printing Co., Inc. v. Sup.Ct.* (1985) 170 Cal.App.3d 438, 442 [a preliminary injunction must not issue unless it is reasonably probable that the moving party will prevail on the merits].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Wells Fargo Bank, N.A. v. Gale**
 Case No. CV2025-0214

Hearing Date: **August 12, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Wells Fargo Bank, N.A.'s request for judicial notice is **GRANTED**. (Evid. Code, § 452.)

Plaintiff's unopposed motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff has established all required elements for breach of contract cause of action. (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388; UMF 1-12.)

Plaintiff's request for attorney's fees and costs is **DENIED WITHOUT PREJUDICE**. Plaintiff has failed to provide adequate support for these fees and costs.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.